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File No.: EXP202207237

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by Mr. A.A.A. on behalf of Mr. B.B.B. against the resolution issued by the Director of the Spanish Agency for Data Protection dated December 2, 2022, and based on the following

FACTS

FIRST: On December 2, 2022, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202207237, in which it was agreed to dismiss the claim for the exercise of rights filed by Mr. A.A.A. on behalf of Mr. B.B.B. (hereinafter, the appellant) against ASNEF-EQUIFAX, INFORMATION SERVICES ON SOLVENCY AND CREDIT, S.L., BANCO SANTANDER, S.A., and EXPERIAN BUREAU DE CRÉDITO, S.A.

SECOND: The resolution now being appealed was duly notified to the claimant on December 2, 2022, as evidenced by the acknowledgment of receipt in the file.

THIRD: The appellant submitted on January 4, 2023, registered in this Agency on January 5, 2023, a recourse for reconsideration, in which he states the following:

That the resolution was notified to the claimant and not to his representative, as was indicated in the claim regarding his will, which complicates the delay and capacity for response.

That he has not been provided with the writings of allegations or responses to the requests made by the Agency from the other two entities claimed, BANCO SANTANDER and ASNEF-EQUIFAX.

That this Agency did send the allegations made by the claimed entity EXPERIAN, but not those from the other entities BANCO SANTANDER and ASNEF-EQUIFAX, which constitutes a detriment to the defense of interests.

As can be inferred from the wording of the resolution, the other two claimed entities must have submitted the appropriate allegations, as they served as the basis for issuing the dismissive resolution that we are now appealing, which has prevented the interested party from making the appropriate counterarguments, thus allowing the Agency to consider false facts and circumstances, on which it has issued an unjust resolution harmful to the rights and interests of the interested party.

That none of the credit companies have proven the notification required by law for their inclusion; they provide certifications from delivery companies where it only states that they had not been returned, which does not prove that notification was adequately made.

That the actions of EQUIFAX and BADEXCUG seem to be limited to the registration of data in the files if the financial entity confirms them, without making further efforts to verify the accuracy of the debt.

According to data protection regulations, both the entities and the Agency must verify that the requirements established by law for the inclusion of data in the delinquency file are met, and this responsibility does not fall solely on the supposedly creditor financial entity.

The fact that the Agency accepts the joint guarantee as valid is prejudging when it is subject to jurisdictional debate, which is a reason for opposition by the claimant; therefore, in this regard, this Authority must refrain from pronouncing due to lack of competence.

That the "third party" administrator of the debtor company supposedly motivated the registration of the claimant's data in the delinquent files. And the criminal proceedings initiated, if the "third party" is found guilty, would provide a clear reason for suspending the ordinary monitoring procedure after the opposition, which is sufficient grounds to provisionally suspend the processing of the interested party's data, and it should be a Judge who pronounces on this matter in due course.

That the fact of the opposition writing in the monitoring procedure aims to dispute the existence of all or part of the debt claimed in the procedure.

That the resolution here appealed should be revoked, issuing a new resolution favorable to the claims made and that a sanctioning resolution be issued against the three claimed entities for the commission of the infringements reported.

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this recourse in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

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The appellant alleges a formal defect in the resolution that undermines the defense due to the lack of a hearing, as the allegations from two respondents were not forwarded. In this regard, it should be noted that, once the claim was admitted for processing, the claimant was given the opportunity to respond to the allegations received from this Agency of Banco Santander and Experian, and no allegations were received from Asnef after the claim was admitted for processing. Therefore, the documentation available in the proceedings was deemed sufficient to resolve the matter, given that Asnef had already expressed its position in the preliminary proceedings prior to the admission of the claim.

This requirement for motivation responds to a threefold necessity, as it, first, expresses the rationality of administrative action when interpreting the will of the norm; second, allows the recipients of the act to know these reasons and potentially subject them to criticism; and, finally, opens the door to oversight by the Courts of Administrative Litigation of the contested acts or provisions, within the scope provided for in Article 106.1 of the Constitution, thus adequately satisfying the right to judicial protection proclaimed in Article 24.1 of the Spanish Constitution.

On the other hand, Article 88 of the LPACAP – "Content" – states that:

"1. The resolution that concludes the procedure will decide all issues raised by the interested parties and any others arising from it. When it comes to related issues that have not been raised by the interested parties, the competent body may rule on them, previously notifying them for a period not exceeding fifteen days, so that they may formulate any allegations they deem appropriate and provide, if applicable, the means of proof.

2. In procedures processed at the request of the interested party, the resolution will be consistent with the requests made by them, without in any case aggravating their initial situation and without prejudice to the Administration's power to initiate a new procedure ex officio, if appropriate.

3. The resolutions will contain the decision, which will be motivated in the cases referred to in Article 35. They will also express the resources that may be filed against it, the administrative or judicial body before which they should be presented, and the deadline for filing them, without prejudice to the interested parties being able to exercise any other they deem appropriate (...)."

Well, as is evident from the documentation in the file and the administrative legal acts arising from it, the Agency has sufficiently motivated – in accordance with the transcribed regulations – the content of its resolution, which is contested in the context of this appeal for reconsideration.

Regarding the fact that the debt has been questioned by opposition to the monitoring procedure, it should be noted that, as already stated in the resolution now being appealed, that the

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The creditor entity, for an unpaid debt, has initiated a judicial action for the recovery of the same, and

despite the claimant stating that they opposed it in said judicial process, it is concluded that the claimant was not the one who contested the claimed debt before the competent authorities; therefore, the removal of the data from the files of financial solvency and credit was not warranted.

For the above reasons, this authority understands that the legally established requirements to include personal data in the files related to the non-fulfillment of monetary obligations are met, and thus the claim presented is dismissed.

Regarding the fact that, on one hand, this Agency is not competent to assess the validity of the debt and, on the other hand, considers the entries in the credit files valid, it should be noted that this authority, as already stated in the resolution now contested, regarding the accuracy of the amount of the debt, the proper provision of the contracted services, or the interpretation of contractual clauses, as well as the determination of the legitimacy of a debt based on an interpretation of the contract signed between the parties and its correct amount, must be addressed before the competent administrative or judicial bodies, as it exceeds the Agency's jurisdiction.

This Agency could become involved in the matter if it has formal knowledge that there is an administrative or judicial claim initiated by the claimant, either in process or resolved in their favor, which prevents the inclusion of the data in those systems, requiring the submission of copies of the documents that prove the processing of the claim and that the debt remains accessible or that the debt has been paid or canceled and that it has not been contested.

Regarding the fact that the responsible parties for the credit files only confirm the entry of a supposed debt without verifying its validity, it is the creditor's responsibility, as the one accountable for ensuring that the data meets the requirements of truthfulness and accuracy established by data protection regulations, since, as such, they are the only ones who can include their debtor's data in the financial solvency and credit information file and request the cancellation of this data when the debt is nonexistent or has been settled and has not been contested.

Therefore, it is interpreted that the legally established requirements to include personal data in the files related to the non-fulfillment of monetary obligations are met.

III

Conclusion

After examining the appeal for reconsideration presented by the interested party, it does not provide new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution; therefore, it is appropriate to agree to its dismissal.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

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FIRST: TO DISMISS the appeal for reconsideration filed by Mr. A.A.A. on behalf of Mr. B.B.B. against the Resolution of this Spanish Agency for Data Protection issued on December 2, 2022, in file EXP202207237.

SECOND: TO NOTIFY this resolution to Mr. A.A.A. on behalf of Mr. B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process, an administrative contentious appeal may be filed within two months from the day following the notification of this act, as provided in Article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of the aforementioned legal text.

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Director of the Spanish Agency for Data Protection

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